

SOW
Project: GCS – [REDACTED] Consumer Support
Simba No. 676559

This Statement of Work (“SOW”) is entered into by [REDACTED] ([REDACTED]) and the Contractor identified below and is subject to the terms of the [REDACTED] Inbound Services Agreement effective June 20, 2020 (simba 674239) (“ISA”). The parties agree this SOW replaces and terminates the SOW titled “Upper Mass Market (UMM)” and later retitled as “[REDACTED]” as amended effective October 1, 2018 (simba 525992) (the “Original SOW”), for Services performed after this SOW’s Effective Date.

Party Information		
1.1.1 [REDACTED]	[REDACTED] Manager name:	[REDACTED]
	[REDACTED] Manager telephone:	N/A
	[REDACTED] Manager email:	meenakshid@google.com
1.1.2 Contractor	Full legal name:	[REDACTED]
	Contractor Project Manager name:	[REDACTED]
	Contractor Project Manager telephone:	N/A
	Contractor Project Manager email:	j[REDACTED]

“SOW Term”	
“SOW Effective Date”:	Date of Google’s signature below
“SOW End Date”:	Three (3) years from the SOW Effective Date
	Unless terminated earlier in accordance with the termination provisions set forth in the ISA, the SOW Term will begin on the SOW Effective Date and end on the later of: A the SOW End Date; or B the end of the last Inspection Period under this SOW (as described in ISA Section 2 (Services and Deliverables)).
Conflicting terms between ISA and SOW	In case of any conflicting terms between ISA and SOW, terms of SOW would apply.

1 Services & Deliverables

[illegible]

2 Service Levels	The Service Levels described in the Worktype Exhibit and Workflow Annex apply to the provision of the Services.
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3 Service Fees	Check all that apply: ☒ Hourly fee* – Billable Hourly payment as set forth in Table A below ☐ monthly fee* – monthly payment as set forth in Table A below ☐ quarterly fee* – quarterly fee based upon Quarterly Achievement as set forth in Table B below Contractor's expenses and costs are included in the fees in this SOW. No other expenses or costs will be reimbursed unless included in this SOW or agreed upon by [REDACTED] in writing via email. The rates mentioned below shall be applicable for a period of twelve (12) months from the SOW Effective Date. Thereafter, Contractor may present to [REDACTED] a proposed Economic Change Adjustment ("ECA"), along with any associated discounts due to increased productivity benefits, and such ECA may be applied to the rates below based on mutual agreement between Contractor and [REDACTED]. In the absence of such mutual agreement, the rates mentioned below shall continue in effect beyond the twelve (12) months from the SOW Effective Date.
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3.1 Table A - Billable Rates

If the Invoice Currency is different from the Service Rate Currency, then to calculate the Service fees for each invoice, Contractor will use the applicable exchange rate published by www.Bloomberg.com as of the last business day of the Service month for which the invoice is issued. Along with each monthly invoice, Contractor will send [REDACTED] a report that documents the exchange rates Contractor used to perform the calculation.

Contractor will provide the Services at the rates for Billable Hours listed in the table below. Contractor is responsible for hiring Personnel as required to provide Services to [REDACTED]. Contractor commits to providing an average of 155 Billable Hours in a month per contracted Personnel. Actual hours per month are dependent on the number of days per month but the annual average will be capped at 155 Billable Hours per month. Invoicing for Services will be based on actual Billable Hours.

Contractor to adjust the staffing keeping in mind the special needs of the product and Services being supported and Contractor agrees that the number of Personnel mentioned in the table below is subject to change during this SOW Term. [REDACTED] may provide Service requirements to Contractor (details can be communicated over e-mail communication) and the contractor agrees to adjust the staffing levels accordingly so long as the Maximum Total Cost is not increased.

Contractor Site Location	Territory Supported	Workflow	Role	Training Fee per hour (INR)	Rate per Billable Hour* (INR)	Headcount Not to Exceed
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Gurgaon, India	India	Kickstart Connect	Non-technical sales/Upsell -- agent Tier 2	80% of the Billable Rate for all Workflows	564 INR	4
			Operations manager - Tier 2		1,557 INR	0.5
			Quality analyst - Tier 2		902 INR	0.5
			Trainer - Tier 2		902 INR	0.5
			Team lead - Tier 2		1,085 INR	0.5
Gurgaon, India	India	Kickstart Scaled	Non-technical sales/Upsell agent-Tier 2		536 INR	11
			Operations manager - Tier 2		1,479 INR	0.5
			Quality analyst - Tier 2		857 INR	0.5
			Trainer - Tier 2		857 INR	0.5
			Team lead - Tier 2		1,031 INR	0.5
Gurgaon, India	India	Inbound/ DSA	Non-technical sales/Upsell agent - Tier 2		501 INR	25
			Operations manager - Tier 2		1,557 INR	1
			Quality analyst - Tier 2		902 INR	2
			Trainer - Tier 2		902 INR	0.5
			Team lead - Tier 2		1,085 INR	2
Gurgaon, India	India	Reception Desk	Non-technical sales/Upsell agent - Tier 1		476 INR	25
			Operations manager - Tier 1		1,479 INR	1
			Quality analyst - Tier 1		857 INR	2



			Trainer - Tier 1		857 INR	0.5
			Team lead - Tier 1		1,031 INR	2
Gurgaon, India	India	Agency Builders	Non-technical sales/Upsell agent - Tier 3		818 INR	5
			Operations manager - Tier 3		1,915 INR	0.5
			Quality analyst - Tier 3		1,112 INR	0.5
			Trainer - Tier 3		1,112 INR	0.5
			Team lead - Tier 3		1,294 INR	0.5
Gurgaon, India	India	Upper Mass Market – India Territory (“UMM”)	Non-technical sales/upsell agent - Tier 3		818 INR	35
			Operations manager - Tier 3		1,915 INR	0.5
			Quality analyst - Tier 3		1,112 INR	2.5
			Operations Manager – Tier 4 (Senior Operations manager)		3,349 INR	N/A
			Trainer - Tier 3		1,112 INR	1
			Team lead - Tier 3		1,336 INR	2.5
Gurgaon, India	India	New Business Sales - Development (NBS-D)	Non-technical sales/upsell personnel - Tier 1 (Opportunities Mass Generation - OMG)		476 INR	8
			Operations manager - tier 1 (OMG)		1,479 INR	0.5
			Quality analyst - tier 1 (OMG)		857 INR	0.5
			Trainer - tier 1 (OMG)		857 INR	0.5
			Team lead - tier 1 (OMG)		1,031 INR	1

			Non-technical sales/upsell personnel - Tier 2 (New Business Acquisition - NBA)		501 INR	10
			Operations manager - tier 2 (NBA)		1,557 INR	0.5
			Quality analyst - tier 2 (NBA)		902 INR	0.5
			Trainer - tier 2 (NBA)		902 INR	0.5
			Team lead - tier 2 (NBA)		1,085 INR	1

* The Billable Hourly rate above includes 50.41 INR per hour for transportation costs.

Table B – Incentive Fees - Bonus Payments, Targets and Weighting: [REDACTED] will pay to Contractor the Fees set forth under Compensation Model in the Workflow Annex unless otherwise expressly set forth below.

As set forth in the Workflow Annex attached to the ISA.

Table C – Variable Cost

For Services performed in India, Variable Cost includes seat costs, training costs and other similar costs within a range of INR 20,000 - 35,000 per Personnel per month as mutually agreed between Parties for Hyderabad (a range of INR,25,000 - 40,000 applies for Bangalore and INR 30,000- 50,000 applies for Gurgaon). There will be a quarterly reconciliation of these costs for the preceding quarter and any necessary adjustments related to this cost in the preceding quarter's invoices will be made (paid or off-set) in the month following conclusion of reconciliation. The exchange rate to be used should be spot rate as given in www.Bloomberg.com as of the last date of service month for which the invoice is being generated. The variable cost rates specified above will be applicable for a period of twelve (12) months from the SOW Effective Date. Thereafter parties reserve the right during the SOW Term to increase such rates by up to 10-15% per year, unless otherwise mutually agreed in writing by the parties. Maximum Total Cost is the sum of 'fixed cost' and 'variable cost'.

3.2 Maximum Total Cost

Under this SOW, the total aggregate amount payable for the Services and Deliverables (including expenses and costs) will not exceed the following amounts. Contractor will notify [REDACTED] when 75% of such amount (or any revised total amount agreed to through an amendment to this SOW) has been invoiced by Contractor in any year of this SOW.

Kickstart		
Year 1	Year 2	Year 3
\$565,000	\$680,000	\$815,000
Inbound/DSA		
Year 1	Year 2	Year 3
\$1,365,000	\$1,640,000	\$1,970,000

	Reception Desk		
	Year 1	Year 2	Year 3
	\$509,771	\$611,726	\$734,071
	Agency Builders		
	Year 1	Year 2	Year 3
	\$277,000	\$332,000	\$400,000
	New Business Sales (NBS)		
	Year 1	Year 2	Year 3
	\$1,000,000	\$1,000,000	\$1,000,000
	Upper Mass Market (UMM)		
	Year 1	Year 2	Year 3
	\$1,650,000	\$1,650,000	\$1,650,000
	New Business Sales - Development (NBS-D)		
	Year 1	Year 2	Year 3
	\$591,844	\$710,213	\$852,255

4. Resources	Contractor will provide [REDACTED] the services as mentioned in this Agreement
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5. Taxes, Invoicing and Payment	Both parties will comply with all applicable tax laws. The parties agree that under current applicable tax laws, India Goods and Services tax (“GST”) and any other similar Indian indirect taxes are applicable on payments to be made to Contractor under this Agreement. The amount of such taxes must be separately itemized and identified on Contractor’s invoices as raised per the Agreement, collected by Contractor, and paid by Contractor to the applicable governmental agency. Contractor must provide [REDACTED] on a timely basis all documentation that may be required by [REDACTED] under law to claim any credit, refund, or rebate of such taxes charged by Contractor. If any credit, refund or other benefit of such indirect taxes is denied or delayed to [REDACTED] due to any tax mis-declarations or non-compliance of applicable law by Contractor, then Contractor will reimburse [REDACTED] for its related losses including taxes, interests, and penalties. <u>Withholding Taxes.</u> If legally required, [REDACTED] will withhold Taxes from its payments to Contractor and provide a withholding Tax certificate.
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[SIGNATURE PAGE TO FOLLOW]



If you are signing on behalf of your company, you represent and warrant that you:

- (1) have full legal authority to bind your company to this SOW;
- (2) have read and understood this SOW; and
- (3) agree to this SOW on behalf of your company.

If you do not have the legal authority to bind your company, do not sign the signature box below.

Signed by authorized representatives of the parties on the dates written below.

By: 

Print Name:

Title:

Date:



By: 

Print Name:

Title:

Date: 2 Jul 20

